

(Code Civ. Proc., § 438, subd. (c)(1)(A).) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$13,554.23 in damages together with costs of \$430.00 for a total of \$13,984.23.

3. S-CV-0049303 Nichols, Anthony J v. W1 Holdings

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Quash

Defendant Donald Hubbard, III moves to quash service of summons in this consolidated action pursuant to Code of Civil Procedure section 418.10. Plaintiffs Anthony J. Nichols and Kristen Haff oppose the motion.

Preliminarily, the court observes defendant's moving papers fail to specify exactly which proof of service of summons he is referring to and often refers to information across multiple proofs of service collectively. Despite this irregularity, the court has spent considerable time with the proofs of service in the court's file to discern defendant's arguments.

Defendant presents evidence he was never personally served in this action and contends service by substitution purported to be on his father was ineffective. Defendant argues service by substitution is ineffective as it is unsupported by evidence of diligent efforts to personally serve defendant. Defendant characterizes the attempts to serve him by delivering papers to his father at a residence in Idaho and the proofs of service to memorialize these attempts as false, misleading, and fraudulent. The court has carefully reviewed six proofs of service filed on March 23, 2026 and, accepting the evidence defendant presented differentiating himself from his father as true, does not observe any false, misleading, or fraudulent information.

The proofs of service purporting to have served defendant Hubbard and defendant W1 Holdings, LLC (not a party to this motion) at 1017 L Street, Sacramento, CA 95814 appears to show proper service pursuant to Code of Civil Procedure section 415.20(c):

[I]f the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency

(Code Civ. Proc., § 415.20, subd. (c).) This subdivision does not require evidence of diligence to personally serve a defendant and even specifies service in this manner may be effected "on the first attempt." (*Ibid.*)

Here, the proof of service showing service pursuant to Code of Civil Procedure section 415.20(c) specifies the summons and complaint were left with “Lane Elliot, Manager of the FedEx Store on March 2, 2026, that defendant’s “physical address unknown,” that “[t]he mailbox was confirmed with the [commercial mail receiving agency] employee and served pursuant to CCP 415.20(c) and B&P 17538.5(d),” and includes a declaration of mailing showing mailing on March 3, 2026. The proof of service is signed under penalty of perjury as is the declaration of mailing. This proof of service is facially sufficient to show service was properly effected pursuant to Code of Civil Procedure section 415.20(c) and defendant presents no evidence that contradicts this. Moreover, the court observes this address is listed in the Statement of Information for W1 Holdings, LLC and the address for Mr. Hubbard as its managing member, CEO, and agent for service of process. Finally, the court observes that the address defendant uses on his motion is the same address as included on this proof of service, although it includes a “No. 485” as well.

Based on the foregoing, defendant Hubbard’s motion to quash is denied.

The court observes that after the motion to quash was filed but prior to the hearing, plaintiff requested entry of default which the court entered on June 9, 2026. As this motion to quash was pending, entry of default was incorrect as to defendant Hubbard. As to the entity defendant, the name of the defendant in the request for default (“W1 Holding, LLC”) does not match the name of the defendant in the complaint (“W1 Holdings, LLC”) and default should not have been entered against it. Accordingly, the defaults entered June 9, 2026 are hereby set aside.

Defendant Hubbard shall file and serve his responsive pleading within 10 days after service upon him of written notice of entry of the court order denying this motion. (Code Civ. Proc., § 418.10, subd. (c).)

Case Management Conference

Appearance of the parties is required on **September 22, 2026 at 9:00 a.m. in Department 32.**